Joshua Coble – 25804853
University of Technology Sydney
43030 Email to Management for DesignR

To: DesignR Management Team

CC: _____

Bcc: _____

Subject: Recommendation: pause AI-generated Indigenous imagery for stock libraries

Dear Management Team,

I support our goal of growing stock library income this year, and I appreciate the care already taken in planning the Indigenous Australian Imagery range. Before we scale production, I would like to raise some concerns and suggest an approach that protects both DesignR and the communities whose culture this work draws on.

Sensitivities

Aboriginal and Torres Strait Islander art is not simply a visual style. Designs and symbols often belong to communities, carry cultural obligations, and some are sacred or restricted to preserve spirituality. This is Indigenous Cultural and Intellectual Property (ICIP), and its use requires free, prior and informed consent (United Nations, 2007, Article 31; Janke, 2021). Our generator was trained on over a billion Facebook and Instagram images (Edwards, 2023), very likely including work already created by Indigenous artists who never consented for this to be used (Wilson, 2024). The tool does not remove the ‘forging’ concern our designers raised, as it blatantly disguises it.

Our current safeguards are well intentioned; however, they do not resolve this issue. The AIATSIS Code centres Indigenous self-determination and leadership (AIATSIS 2020), yet no Aboriginal or Torres Strait Islander people are involved in our process. Cultural descriptions written by non-Indigenous staff risk spreading inaccuracies. A disclaimer in this situation acknowledges the problem rather than fixing it, and donations are charity, not benefit sharing negotiated by communities. To add to this, a licence permitting edits means cultural integrity cannot be protected after sale.

Potential impacts

For communities, high volumes of low-cost imitations could crowd out authentic artists in the very gap we identified, reduce their income and misrepresent culture to a wide audience as a result. For DesignR, the risks are reputational, commercial and legal. Our government and global clients increasingly hold Reconciliation Action Plans and Indigenous procurement commitments, and association with ‘fake’ Indigenous art could cost us those relationships. In ACCC v Birubi Art (2018), the Federal Court found that selling Aboriginal-style products not made by Aboriginal

people was misleading. The ACS Code of Professional Ethics also asks us to place the public interest above business interests (Australian Computer Society [ASC], 2023).

Recommendations

1. Pause new uploads and review already published images
2. Partner with rather than imitate. This means commissioning or licencing work from Aboriginal and Torres Strait Islander artists or Indigenous-owned studios, with attribution, fair royalties and artist control over licence terms (Australia Council for the Arts, 2019).
3. Establish a ICIP policy, based on the True Tracks principles (Janke, 2021), with a cultural review step for any project drawing on Indigenous culture
4. Adopt an AI use policy consistent with Australia's AI Ethics Principles (Department of Industry, Science and Resources [DISR], 2019) that prohibits generating culturally specific content from non-consented data.
5. Engage a paid Indigenous cultural adviser and provide cultural competency training for staff

This still lets us meet the market demand we identified, but in a way that is authentic and does not come across as insensitive. It is defensible to clients and beneficial to the communities involved. I would welcome the chance to discuss this and help develop these polices.

Kind Regards,
Joshua Coble
Graphic Designer, DesignR

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